

From: Contact Centre (NDIS Commission) ContactCentre@ndiscommission.gov.au 
Subject: RE: being an 'employee' for the purposes of workcover - URGENT please [SEC=OFFICIAL]
Date: 14 May 2021 at 4:05 pm
To: Dr Rich Mclean rich@richmclean.com.au

CC

Dear Richard Mclean,

Thank you for your time over the phone regarding registration ID: 4-433J-962. The e-mail below is addressed to the NDIA but just to be very clear it was sent to the NDIS Commission.

I am sorry to hear about your current situation and the struggles you are facing, however I discussed this matter with my team leader and I believe that you may have been provided similar information on a separate occasion. I will do my utmost to be clear so that you can locate the department best placed to assist with your enquiries.

I'll begin with information regarding your registration and the renewal process. Your renewal date is 31/3/2020, as a transitioning provider you are afforded 9 months from this date to have your renewal application and accompanying audit completed and submitted to the Commission. This would have seen you submit by 31/12/2020. You have now entered into breach of your conditions of registration.

You are still able to trade and service participants (if you wish) during this time however the expectation is that you be looking to complete your audit as soon as is practicable.

We can currently see you do not have an auditor engaged nor impending audit dates booked.

If you wish to proceed with this renewal you should consult the NDIS PB support and pricing guide to ensure you are registering for the correct classes of support:
<https://www.ndis.gov.au/providers/price-guides-and-pricing>

You should also ensure these are correct as any extra classes of support can impact the cost of your audit.

Information regarding the renewal process and supporting documentation you might find helpful can be found here: <https://www.ndiscommission.gov.au/providers/renew-your-registration> & <https://www.ndiscommission.gov.au/resources/application-pack>

In relation to your enquiries regarding Comminsure and being "employed" by the NDIA I can advise that the Commission is not best placed to advise on this, this is not our remit.

The NDIS Commission is an independent agency established to improve the quality and safety of NDIS supports and services. The NDIS Commission brings together various quality and safeguards functions under a single agency, with a suite of education and regulatory powers that applies across Australia. We can assist with the provider registration process as well as handling complaints regarding providers in both a registered or unregistered capacity.

The NDIA (national Disability Insurance Agency) makes decisions about whether someone is eligible to become an NDIS participant and, if so, how much funding they will receive. This is based on legislation called the [NDIS Act 2013](#) which sets out what supports and services are considered reasonable and necessary for the NDIS to

fund. More broadly the NDIA are in charge of participants, pricing and claiming.

You are a registered provider with the NDIS Commission and you may well service Agency managed participants (the percentage of which and amount totaling we would have absolutely no oversight of) however I do not believe that means you are “employed” by them.

My understanding, and this is just my personal understanding- not the view of the Commission- which I share with you in hopes that you can find the correct department for your enquiry, is that individual sole traders are responsible for their own insurances and are in a sense “self-employed”. Further information regarding this from the ATO can be found here: <https://www.ato.gov.au/business/starting-your-own-business/before-you-get-started/choosing-your-business-structure/sole-trader/>

Only the NDIA can confirm for you that you are indeed not “employed” by them, however I believe it to be clear that as an individual sole trader you are legally responsible for all aspects of the business and that Debts and losses can't be shared with other individuals. In my opinion this matter will need to be settled with your insurance company directly or by obtaining written documentation from the NDIA stating they do not view providers who have their own ABN's as employees.

I hope this information is helpful and you could perhaps pass this correspondence along to the NDIA in hopes it summarizes your questions as well as the interactions you have had with the Commission on the matter thus far,

Should you require any further assistance, please do not hesitate to contact us on 1800 035 544.

Yours sincerely
Holly Withers on behalf of
Contact Centre



NDIS Quality
and Safeguards
Commission

P: 1800 035 544 | **E:** registration@ndiscommission.gov.au
www.ndiscommission.gov.au

The NDIS Quality and Safeguards Commission acknowledges the traditional owners of country throughout Australia and their continuing connection to land, sea and community. We pay our respects to them and their cultures, and to elders both past and present.

From: Dr Rich Mclean <rich@richmclean.com.au>
Sent: Friday, 14 May 2021 1:11 PM
To: Contact Centre (NDIS Commission) <ContactCentre@ndiscommission.gov.au>
Cc: Rich McLean <rich@richmclean.com.au>
Subject: Re: being an 'employee' for the purposes of workcover - URGENT please

Dear NDIA,

I need to know if I am covered by commcare for workcover please urgently.

If I can rec give a debt from them for an advance payment, you would think that I am an 'employee'

employee

Please can you all answer this framed by the conversations that have led no-where from comminsure below.

Thanks